

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 697

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO ELECTIONS; REPEALING SECTION 18-2306, IDAHO CODE, RELATING TO ILLEGAL VOTING, INTERFERENCE WITH AN ELECTION, AND TAMPERING WITH VOTING MACHINES OR VOTE TALLY SYSTEMS; AMENDING CHAPTER 23, TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 18-2306, IDAHO CODE, TO PROVIDE FOR THE CRIME OF ILLEGAL VOTING; AMENDING CHAPTER 23, TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 18-2306A, IDAHO CODE, TO PROVIDE FOR THE CRIME OF INTERFERENCE WITH AN ELECTION; AMENDING CHAPTER 23, TITLE 18, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 18-2306B, IDAHO CODE, TO PROVIDE FOR THE CRIME OF TAMPERING WITH VOTING MACHINES OR VOTE TALLY SYSTEMS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-2306, Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Chapter 23, Title 18, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 18-2306, Idaho Code, and to read as follows:

18-2306. ILLEGAL VOTING. Every person not entitled to vote who fraudulently votes and every person who votes more than once at any one (1) election or knowingly hands in two (2) or more tickets folded together shall be guilty of a felony.

SECTION 3. That Chapter 23, Title 18, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 18-2306A, Idaho Code, and to read as follows:

18-2306A. INTERFERENCE WITH ELECTION. (1) Every person who changes any ballot after the same has been deposited in the ballot box, or who adds, or attempts to add, any ballot to those legally polled at any election, either by fraudulently introducing the same into the ballot box before or after the ballots therein have been counted, or by adding to or mixing with, or attempting to add to or mix with, the ballots lawfully polled, other ballots, while the same are being counted or canvassed, or at any other time, with intent to change the result of such election shall be guilty of a felony.

(2) Every person who carries away or destroys, or attempts to carry away or destroy, any poll list, ballots, or ballot box, for the purpose of breaking up or invalidating such election, or who willfully detains, mutilates, or destroys any election returns, or who in any manner so interferes with the officers holding such election or conducting such canvass or with the voters lawfully exercising their rights of voting at such election, as to prevent

1 such election or canvass from being fairly held and lawfully conducted shall
2 be guilty of a felony.

3 SECTION 4. That Chapter 23, Title 18, Idaho Code, be, and the same is
4 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
5 ignated as Section 18-2306B, Idaho Code, and to read as follows:

6 18-2306B. TAMPERING WITH VOTING MACHINES OR VOTE TALLY SYSTEMS. Every
7 person who violates the provisions of section 34-2404(1) or (2), Idaho Code,
8 by tampering with a voting machine or vote tally system shall be guilty of a
9 felony.

10 SECTION 5. An emergency existing therefor, which emergency is hereby
11 declared to exist, this act shall be in full force and effect on and after
12 July 1, 2026.